

Who Shapes Digital Markets Act?

A briefing on lobbying influence during the EU legislative procedure for the Digital Markets Act (2020/0374(COD)), which aims to ensure fair and contestable digital markets. The analysis is based on 1072 amendments parsed and 517 disclosed lobbying meetings.

The Lobbying Landscape

The legislative process for the Digital Markets Act attracted significant lobbying activity, with a total of 517 disclosed meetings. Based on the top 30 organisations, the ratio of commercial to non-commercial lobbying contacts is approximately 10:1, indicating a strong presence of corporate interests in the formal transparency register.

The organisations with the most recorded meetings were Apple Inc. (54 meetings), Google (31 meetings), and Meta Platforms Ireland Limited and its various subsidiaries (27 meetings). These major tech companies primarily lobbied on themes such as “enforcement, monitoring, and sanctions”, “specific gatekeeper obligations and prohibitions”, and “impact on innovation, choice, and market efficiency”.

Among the policy themes identified, “enforcement, monitoring, and sanctions” was the most lobbied area in Commission meetings with 59 recorded contacts. This was followed by “impact on innovation, choice, and market efficiency” (43 meetings), and “gatekeeper definition and criteria” (23 meetings).

Statistical Findings on Thematic Overlap

A Fisher’s exact test conducted on 13 MEPs found a statistically significant association between higher lobby exposure (LEI group) and broader thematic overlap with lobbying activities ($p=0.0291$). This suggests that MEPs who engaged in more lobbying meetings tended to address a wider range of policy themes that were also subject to lobbying efforts. While this indicates a correlation, it does not establish causation. No statistically significant relationship was found between the Lobby Exposure Index (LEI) and the total number of amendments, nor between the Amendment-Lobby Alignment Score (ALAS) and amendments on commercial themes.

Directional Alignment of Amendments

The analysis of directional alignment indicates varying patterns among MEPs. Andreas SCHWAB (EPP, Rapporteur), with 15 amendments and 51 meetings, showed amendments moving toward lobby positions in 31 out of 80 evaluated pairs, and away in 31 pairs, for an alignment fraction of 0.388.

Andrus ANSIP (Renew, Shadow Rapporteur), who submitted 95 amendments and held 67 meetings, had an alignment fraction of 0.56. His amendments moved toward lobby positions in 98 out of 175 evaluated pairs, while moving away in 42 pairs and showing neutral alignment in 35 pairs. This indicates that his amendments moved toward lobby positions more often than away.

Marcel KOLAJA (Greens/EFA, Shadow Rapporteur), with the highest number of amendments (135) and 32 meetings, displayed an alignment fraction of 0.406. His amendments moved toward lobby positions in 71 out of 175 evaluated pairs, slightly more than the 67 pairs moving away, with 37 neutral pairs.

Stéphanie YON-COURTIN (Renew, Opinion Rapporteur), who proposed 103 amendments and held 30 meetings, showed an alignment fraction of 0.56. Her amendments moved toward lobby positions in 84 out of 150 evaluated pairs, and away in 35 pairs, with 31 neutral pairs. This indicates that her amendments also moved toward lobby positions more often than away.

Adam BIELAN (ECR, Shadow Rapporteur), with 21 amendments and 8 meetings, had an alignment fraction of 0.392. His amendments moved toward lobby positions in 47 out of 120 evaluated pairs, but moved away in 51 pairs, with 22 neutral pairs. This suggests that his amendments moved away from lobby positions more often than toward them.

Theme-Level Observations

The theme of “specific gatekeeper obligations and prohibitions” received the highest number of amendments, with 545 amendments proposed. This theme also saw the third-highest number of total lobbying meetings (26). This suggests significant parliamentary attention to the core rules governing gatekeeper behaviour.

In contrast, the theme of “enforcement, monitoring, and sanctions” recorded the highest number of lobbying meetings (66), but ranked second in terms of amendments (407). This pattern suggests substantial lobbying interest in the operational aspects of the regulation, possibly aiming to shape the implementation and penalty mechanisms.

“Promotion of societal values” saw limited lobbying activity, with only 1 total meeting, and also the fewest amendments (48). This indicates that the legislative focus, and associated lobbying, concentrated more on economic and structural aspects of digital markets than on broader societal objectives.

Limitations

This analysis is based solely on publicly disclosed lobbying meetings and does not account for informal contacts or other forms of influence. The temporal ordering of meetings and amendments has not been checked, meaning some meetings may have occurred after amendments were drafted.

Produced by an automated pipeline.